FISHERIES MANAGEMENT ACT 1991
SOUTHERN AND EASTERN SCALEFISH AND SHARK FISHERY MANAGEMENT PLAN 2003

SOUTHERN AND EASTERN SCALEFISH AND SHARK FISHERY (Closures) DIRECTION No. 2 2009 PROHIBITION ON FISHING

I, Glenn Hurry, Chief Executive Officer of the Australian Fisheries Management Authority, as delegate, make the following Direction under section 17(5A) of the *Fisheries Management Act 1991* and section 56(1) of the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003.*

Dated 18 May 2009

Signed – Glenn Hurry

Chief Executive Officer,
Australian Fisheries Management Authority

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1. Citation

This Direction may be cited as SESSF (Closures) Direction No. 2 2009

2. Commencement

This Direction commences the day after it is registered on the Federal Register of Legislative Instruments.

3. Application

This Direction applies to a holder of statutory fishing rights in the Southern and Eastern Scalefish and Shark Fishery and to a person acting on behalf of the holder.

4. Period of Application

This Direction applies for a period beginning on the date this Direction commences and ending on and including 30 April 2010.

5. Definitions

An expression used in this direction has the same meaning as in the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003.*

All geographic coordinates contained within the schedules attached to this document are in terms of the **Geocentric Datum of Australia 1994 (GDA94)**.

Unless otherwise stated, the lines between coordinates are geodesics.

6. Prohibition on fishing

A person in an area described in Schedule 1 and Schedule 2 is prohibited from fishing.

7. To whom do the prohibitions in clause 6 not apply?

The prohibitions in clause 6 do not apply to a person if the person is fishing in accordance with:

i. another plan of management in force under the *Fisheries Management Act 1991*, or a law of a State or Territory that is in force in relation to the Southern and Eastern Scalefish and Shark Fishery area; or

ii. a scientific permit which has specific conditions enabling the holder to operate in the specified area of waters.

SCHEDULE 1

Seiner's Horseshoe

The area of Seiner's Horseshoe is the part of the AFZ outside the coastal waters of the State of Victoria contained within and bounded by a line:

(a) commencing at the point of latitude 38° 18.374' south, longitude 148° 35.870' east, and running progressively;

(b) east along the parallel of latitude 38° 18.374' south to its intersection with the meridian of longitude 148° 40.236' east;

(c) then southeasterly along the geodesic to the point of latitude 38° 27.116' south, longitude 148° 45.124' east;

(d) then southwesterly along the geodesic to the point of latitude 38° 31.829' south, longitude 148° 32.703' east;

(e) then north northeasterly to the point of commencement.

SCHEDULE 2

Everard Horseshoe

The area of Everard Horseshoe is the part of the AFZ outside the coastal waters of the State of Victoria contained within and bounded by a line:

(f) commencing at the point of latitude 38° 04.914' south, longitude 149° 21.490' east, and running progressively;

(g) easterly along the geodesic to the point of latitude 38° 04.788' south, longitude 149° 24.089' east;

(h) then southeasterly along the geodesic to the point of latitude 38° 09.837' south, longitude 149° 33.324' east;

(i) then southerly along the geodesic to the point of latitude 38° 16.500' south, longitude 149° 32.912' east;

(j) then west along the along the parallel of latitude 38° 16.500' south to its intersection with the meridian of longitude 149° 26.800' east;

(k) then northeasterly along the geodesic to the point of latitude 38° 13.151' south, longitude 149° 30.083' east;

(l) then northwesterly to the point of commencement.